

Tentative Rulings
August 17, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

If you do not wish to submit on a tentative ruling, you must appear for the hearing either in person; CourtCall (888-882-6878 or www.courtcall.com); or by ZOOM. Failure to appear is deemed a waiver of oral argument. If all parties submit on a tentative ruling, it will become the ruling of the court. The tentative ruling may note particular issues on which the court requests further argument. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the Court no longer provides an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the department if you would like a copy of this form. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

14. *Wells Fargo Bank, NA, v. Binney*, Case No. CIVSB2602313
Plaintiff's Motion to Deem Requests for Admission Served on Defendant as Admitted
8/17/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion. The Requests for Admissions, Set One (RFA1) served on Defendant on February 27, 2026, are deemed admitted.

Here, there have been no responses provided to the RFA1 served on Defendant. (Lopez Decl., ¶¶2-3, Exh. 1.) Plaintiff sent a meet-and-confer letter on April 3, 2026, that provided additional time to respond. (Lopez Decl., ¶5 & Exh. 2.) Yet, to date no responses have been provided by Defendant. (Lopez Decl., ¶¶4-5.)

"The law governing the consequences for failing to respond to requests for admission may be the most unforgiving in civil procedure." (*Demyer v. Costa Mesa Mobile Home Estates* (1995) 36 Cal.App.4th 393, 394, disapproved on other grounds *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 983.) "There is no relief under section 473." (*Ibid.*) "The defaulting party is limited to the remedies available in (CCP § 2033.280)." (*Ibid.*) "The propounding party need give no warning (at least according to one well-respected authority) – it simply files a motion to deem the matters covered by the requests admitted." (*Demyer, supra*, 36 Cal.App.4th at p. 395.) "The nonresponding party then has until the 'hearing on the motion' to serve responses to the admissions request." (*Ibid.*) "If the party manages to serve its responses before the hearing, the court has no discretion but to deny the motion." (*Ibid.*) "But woe betide the party who fails to serve responses before the hearing." (*Ibid.*) "In that instance the court has no discretion but to grant the admission motion, usually with fatal consequences for the defaulting party." (*Demyer, supra*, 36 Cal.App.4th at pp. 395-396.)
